PRISMHR GLOBAL REFERRAL AGREEMENT

This Referral Agreement (the "Agreement") is entered into by and between PrismHR, Inc and its affiliated and related entities (collectively referred to as the "Company") and [CUSTOMER NAME] whose address is [CUSTOMER BILLING ADDRESS] (the "Referring Party").

1) **SCOPE.**
Referring Party agrees to refer prospective clients that may be interested in obtaining services offered by the undersigned company and/or its affiliated and related entities, including employer of record, contractor management, global payroll and related services globally (collectively, the "Global Services").

Nothing in this Agreement shall obligate Company to accept any referral or enter into an agreement with any prospective client referred by the Referring Party. Once accepted by Company, the prospective clients shall become referred clients ("Referred Clients") for the purposes of this Agreement.

2) **TERM AND TERMINATION.**

a) Term. This Agreement shall commence on the date signed by the last party to sign this Agreement ("the Effective Date") and shall continue indefinitely unless terminated as provided herein.

b) Termination. Either party may terminate this Agreement without cause. Either party may also terminate this Agreement with cause if the other party breaches any provision of this Agreement and fails to cure the breach after ten (10) days of receiving notice from the non- breaching party. For the purposes of this section, "cause" shall include, without limitation:

(i) Referring Party's willful or negligent misrepresentation of the Services to any prospective client; (ii) the failure by either party to comply with applicable law; or (iii) to the extent applicable, the failure by either party to be licensed or otherwise permitted by applicable law to perform its obligations hereunder.

c) Compensation after termination. If Company terminates this Agreement for cause as defined above, Referring Party's compensation shall be reduced by fifty percent (50%). Regardless of the reason for termination of this Agreement, in no event shall Referring Party be entitled to any referral fees related to clients that do not contract with Company within thirty (30) days of termination of this Agreement.

3) **ACCEPTANCE OF CLIENTS.**
Company has exclusive and final authority with regard to client pricing and Referring Party agrees not to provide any prospective clients with a quote for the Services without Company´s prior approval. Company shall have sole discretion to accept or reject any prospective clients introduced by Referring Party and Company will have the right to determine which of its affiliated entities will enter into an agreement with each Referred Clients. Company may also establish any conditions for acceptance of clients.

4) **REFERRING PARTY´S DUTIES.**
Referring Party agrees to perform the following duties:

a) Refer and introduce prospective clients to Company and accurately describe to the prospective clients the nature of the Services offered by Company;

b) Provide reasonable assistance in gathering and compiling relevant information regarding the prospective clients;

c) Clearly advise prospective clients that Referring Party has no authority to bind or make commitments on behalf of Company and refrain from making any representations, offers, or warranties regarding the Services, including providing pricing information without prior approval from Company;

d) Reasonably cooperate with Company in connection with the Referred Clients, including by promptly providing relevant client updates received by Referring Party;

e) Promote Company´s Services using only marketing materials and information provided and/or authorized by Company; and

f) Perform its duties in accordance with professional standards and with any applicable laws or regulations, including, if applicable, obtaining any necessary permits or licenses required by any governmental or other regulatory agencies.

5) **COMPENSATION.**

a) Referral Fees. As compensation for the referrals, and subject to the terms of this Agreement, Company agrees to pay the Referring Party the referral fees as outlined in Schedule A for each prospective client that

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is accepted by Company and enters into an agreement for the Services (each, a "Referred Client") for as long as such Referred Client remains a client of the Company. Referring Party shall not be entitled to any compensation except as set forth in this Agreement and shall not be entitled to reimbursement of any expenses that were not previously agreed in writing by Company. From time to time, the parties may agree to modify the compensation structure or referral fee outlined in Schedule A to accommodate special pricing terms with specific clients. Any adjustment will be mutually agreed and apply only to those specific referrals and will not affect the compensation for prior referrals or any other Referred Clients.

b) Taxes. Referring Party shall be solely responsible for any federal, state, or local taxes applicable to the compensation received under this Agreement.

c) Timing of Payment. Referral fees shall be calculated on a monthly basis. Referral fees earned during each calendar month shall be payable by the end of the following month. For the purposes of this Agreement, a referral fee shall be deemed earned only upon Company´s actual receipt of payment from the Referred Clients for the corresponding invoice. Company will provide referral fees statements to Referring Party with each payment.

d) Chargebacks. Referring Party understands that payment of referral fees is contingent upon Company receiving payment from the Referred Clients and that it shall not be entitled to referral fees with respect to unpaid invoices. Referral fees are subject to chargebacks in the event that Referring Party is paid a referral fee related to an invoice that is not paid by a Referred Client, either due to a dishonored check, reversed ACH, or otherwise. Referring Party agrees to use reasonable efforts to assist Company in contacting defaulting clients and with collection efforts.

6) CONFIDENTIAL INFORMATION.
To refer Company´s services, Referring Party may be given access to confidential information of Company and its affiliates, including but not limited to Company's client services agreements, current and potential client lists, business plans, software programs, processes, policies and procedures, merger and acquisition plans, among others (collectively "Confidential Information"). While this Agreement is in effect and after its termination, regardless of cause, Referring Party agrees not to use or disclose, except for the limited purpose of performing Referring Party's obligations under this Agreement, any of the Confidential Information to any persons or entities without Company's prior written consent. Referring Party acknowledges that any breach of this section will cause immediate and irreparable harm to the legitimate business interests of Company for which there may be no adequate remedy at law, and therefore, Referring Party agrees that Company shall be entitled to seek injunctive relief in addition to any other available rights and remedies which may be available in case of any such breach or threatened breach. If Referring Party breaches the provisions of this section, Referring Party will be deemed to have forfeited any and all entitlement to future compensation under this Agreement.

7) NON-SOLICITATION.
While this Agreement is in effect and for a period of two (2) years after its termination Referring Party will not, in any capacity, directly or indirectly, solicit, accept, divert, take away or interfere with any of the employees of the Company with whom Referring Party had contact with or got to know in connection with this Agreement. If Referring Party breaches the provisions of this section, Referring Party will be deemed to have forfeited any and all entitlement to future compensation under this Agreement.

8) RELATIONSHIP OF THE PARTIES.
Referring Party is not an employee, partner, officer, or authorized agent of the Company. Referring Party shall have no authority to, and may not bind Company or provide prospective clients with pricing information without Company´s express consent on a case-by-case basis. Company shall not control or direct the mode or manner in which Referring Party shall refer the Services and the time spent by Referring Party offering Company´s services shall be determined in Referring Party´s sole discretion.

9) ENTIRE AGREEMENT.
This Agreement constitutes the entire agreement between the parties and is intended as an integration of all prior agreements, negotiations, statements, understandings, and promises between the parties. Further, no change, modification or amendment to this Agreement of any kind shall be valid unless it is made in writing and executed by both parties.

10) GOVERNING LAW.
This Agreement shall be governed by the laws of the State of Arizona, United States of America. The parties agree to sole venue in the state or federal courts located in the State of Arizona and each party hereby consents to the jurisdiction of such courts.

IN WITNESS WHEREOF, the parties have had a duly authorized officer, partner or principal execute this Agreement.

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[CUSTOMER NAME]
REFERRING PARTY

Signed:

Printed Name:
Title:
Date:

PRISMHR, INC.
COMPANY

Signed:

Printed Name:
Title:
Date:

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SCHEDULE A

REFERRAL FEES

a) Employer of Record (EOR)
For EOR services, Company shall pay Referrer a referral fee equal to twenty percent (20%) of the Administrative Fee actually received from the applicable Referred Client.

Referral fees for Global Payroll services shall be payable only during the first twelve (12) months.

b) Global Payroll
Referral fees for Global Payroll services shall be calculated as follows:

Headcount	Referral fees
0-150	10% of the Administrative fee
151+	20% of the Administrative fee

Referral fees for Global Payroll services shall be payable only during the first twelve (12) months.

c) AOR/Contractor

Referral fees for Global Payroll services shall be calculated as follows:

Headcount	Referral fees
0-150	10% of the Administrative fee
151+	20% of the Administrative fee

Referral fees for Global Payroll services shall be payable only during the first twelve (12) months.

d) Definitions.
For purposes of this Annex, "Administrative Fee" means the recurring fee charged by Company to a Referred Client solely for the applicable service (EOR/AOR/Contractor Management, or Global Payroll) and expressly excludes all pass-through costs and any other amounts invoiced to the Referred Client, including, without limitation, employee compensation, implementation fees, onboarding fees, service fees for ancillary services, and any other fees or expenses not constituting the recurring administrative service fee.

Referral fees shall be calculated solely on Administrative Fees actually received by Company from the applicable Referred Client.

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